



## OFFER TO PURCHASE / DEED OF SALE AGREEMENT

(hereinafter referred to as "the / this Agreement") entered into and between:

|                                                                                        |  |
|----------------------------------------------------------------------------------------|--|
| <b>PURCHASER ONE</b>                                                                   |  |
| Full Name / Registered Name:                                                           |  |
| Identity Number / Registration Number:                                                 |  |
| (if legal entity) represented herein by the undersigned, he/she being duly authorised: |  |

|                                                                                        |  |
|----------------------------------------------------------------------------------------|--|
| <b>PURCHASER TWO</b>                                                                   |  |
| Full Name / Registered Name:                                                           |  |
| Identity Number / Registration Number:                                                 |  |
| (if legal entity) represented herein by the undersigned, he/she being duly authorised: |  |

("the Purchaser/s")  
and

|                                                                                        |  |
|----------------------------------------------------------------------------------------|--|
| <b>SELLER ONE</b>                                                                      |  |
| Full Name / Registered Name:                                                           |  |
| Identity Number / Registration Number:                                                 |  |
| (if legal entity) represented herein by the undersigned, he/she being duly authorised: |  |

|                                                                                        |  |
|----------------------------------------------------------------------------------------|--|
| <b>SELLER TWO</b>                                                                      |  |
| Full Name / Registered Name:                                                           |  |
| Identity Number / Registration Number:                                                 |  |
| (if legal entity) represented herein by the undersigned, he/she being duly authorised: |  |

("the Seller/s")

|                                                                                                        |                                  |                 |  |
|--------------------------------------------------------------------------------------------------------|----------------------------------|-----------------|--|
| <b>PROPERTY DESCRIPTION (WHICHEVER IS APPLICABLE)</b>                                                  |                                  |                 |  |
| Street Address:                                                                                        |                                  |                 |  |
| Sectional Title:                                                                                       | Unit Number:                     | Door Number:    |  |
|                                                                                                        | Sectional Title Scheme Known as: |                 |  |
|                                                                                                        | Sectional Title Scheme Number:   |                 |  |
|                                                                                                        | Erf & Township:                  |                 |  |
|                                                                                                        | Extent:                          |                 |  |
|                                                                                                        | Exclusive Use Area/s:            | Garage Number:  |  |
|                                                                                                        |                                  | Parking Number: |  |
|                                                                                                        |                                  | Garden Number:  |  |
| Full Title:                                                                                            |                                  |                 |  |
|                                                                                                        |                                  |                 |  |
|                                                                                                        |                                  |                 |  |
| Title Deed:                                                                                            | Extent:                          |                 |  |
| Use legal Property description as registered in the relevant deeds office, in instances of uncertainty |                                  |                 |  |

("the Property")



## 1. PREAMBLE

1.1. The Purchaser hereby makes an offer to the Seller to purchase the Property on the terms and the conditions set out hereunder.

## 2. PURCHASE PRICE

2.1. The Purchase Price is R \_\_\_\_\_  
 ( \_\_\_\_\_ ), payable  
 as follows:

2.1.1. a cash deposit of R \_\_\_\_\_  
 ( \_\_\_\_\_ ) shall be paid to the

Conveyancers within \_\_\_\_\_ days of the Signature Date; and

2.1.2. the balance of the Purchase price amounting to  
 R \_\_\_\_\_ ( \_\_\_\_\_ ) shall be paid to the

Conveyancers within \_\_\_\_\_ days of the Signature Date; OR

2.1.3. The Purchaser shall secure payment of the amount referred to in 2.1, by  
 or before \_\_\_\_\_, through one or more guarantees from  
 a recognised financial institution in favour of the Seller.

2.2. Any amounts paid by virtue of this Agreement to the Conveyancers shall be held in their  
 trust as a stakeholder, for the benefit of the Purchaser, but as agent for neither, for  
 release to the Seller upon registration of transfer;

2.3. As a stakeholder, pending due decision at law or by mutual Agreement in writing of any  
 dispute in the event of either Party hereto, before transfer, claiming such dispute and  
 objecting to the release of the deposit to the other Party.

2.4. All amounts paid to the Conveyancer shall be invested in an interest bearing account  
 with a financial institution. The net interest, if any, earned on such amounts shall accrue  
 for the benefit of the Purchaser subject to the investment management fee charged by  
 the Conveyancer and those payable to the Legal Practice council.

## 3. VALUE ADDED TAX (VAT) AND TRANSFER DUTY

3.1. The Parties agree that no Value Added Tax ("VAT") is payable in respect of this  
 transaction.

3.2. In the event that this Agreement was concluded by both Parties on the mistaken belief  
 that the sale is not subject to VAT, and it subsequently transpires that VAT is payable,  
 then the Purchase Price shall be deemed to be inclusive of VAT.

3.3. The Parties agree that the sale of the Property shall be subject to payment of transfer  
 duty in terms of the Transfer Duty Act, 1949, and that the Purchaser shall be liable for  
 all transfer duty payable thereunder.

## 4. SUSPENSIVE CONDITIONS (IF APPLICABLE)

4.1. The offer is subject to the condition that the Purchaser is successful in obtaining a loan/s  
 secured by a bond/s for not less than  
 R \_\_\_\_\_ ( \_\_\_\_\_ ) to be obtained by or before  
 \_\_\_\_\_. as may be offered by the relevant Financial Institution  
 on mutually agreed terms and accepted by the Purchaser, in which instance any  
 shortfall will be payable by the Purchaser in cash to the Conveyancer on demand.



- 4.2. The Purchaser undertakes to timeously take all steps and to sign all documents which may be required to obtain such loan/s, failing which the Agent and/or their agency and/or any of their affiliates and/or representatives \_\_\_\_\_ (“the Agent”), upon acceptance of the benefits accruing to them in terms of this Offer, shall be entitled to after notice is given to the Purchaser as contemplated in accordance with this Agreement and should the Purchaser not rectify his breach, claim payment of agreed commission plus VAT (which amount will be advised to the Purchaser at the time of breach by the Purchaser) thereon from the Purchaser as if the condition has been fulfilled fictitiously. This condition shall be deemed to have been fulfilled on receipt of written advice from any registered South African financial institution that the loan(s) has been approved in principle. Should the loan(s) not be granted by the date herein mentioned, the period shall automatically be extended with a further 14 (fourteen) days.
- 4.3. The Purchaser hereby expressly permits, consents that and authorises the Seller and/or the Agent to contact, request and obtain any information of himself necessary to obtain a final loan approval from any registered South African financial institution and to obtain information from any credit provider (or potential credit provider) or registered credit bureau relevant to an assessment of the behaviour, profile, payment patterns, indebtedness, whereabouts, and creditworthiness of the Purchaser.
- 4.4. The Purchaser hereby consents to the Agent sharing the Offer to Purchase and other personal information with third party service providers for purposes of a home loan application and/or in respect of any other relevant financial products that the Purchaser may be interested in.
- 4.5. This Offer is further subject to the condition that **(IF APPLICABLE)**:
- 4.5.1. The Purchaser shall, by not later than \_\_\_\_\_ have received a bona fide written Offer to Purchase in respect of the property described as \_\_\_\_\_.
- 4.5.2. (the “second property”); and
- 4.5.3. Any suspensive conditions contained in the Agreement of sale of the second property shall be fulfilled by not later than \_\_\_\_\_; and
- 4.5.4. The transfer of the Property and the second property shall be linked in the conveyancing and financing process, it being the intention that the registration of transfers and payments shall take place simultaneously.  
**(Delete, if not applicable)**
- 4.6. The provisions of this clause. are inserted for the benefit of the Purchaser who/which may waive the condition expressly or by conduct.

## 5. OCCUPATION

- 5.1. The Purchaser shall be entitled to take occupation of the Property on:
- 5.1.1. Registration; OR
- 5.1.2. \_\_\_\_\_.
- 5.2. Occupation of the Property will be subject to the compliance of the suspensive conditions, all required guarantees have been delivered and all transfer and bond costs and expenses or shortfalls have been paid in terms of this Agreement. Should the occupation date not coincide with the date of registration of transfer, the Party occupying the Property while it is registered in the name of the other Party, shall pay to the other Party, monthly in advance, occupational interest in the amount of R \_\_\_\_\_ ( \_\_\_\_\_ ) which is payable to the Conveyancer.



- 5.3. No tenancy shall be created by the Purchaser taking occupation prior to transfer and the Purchaser's right of occupation shall terminate on cancellation of the sale whatever the reason thereof and the Purchaser with all occupants shall immediately vacate the property and hand over the full set of keys to the Agent. The Purchaser shall not be entitled to make any alterations or additions to the Property prior to transfer.

## 6. RISK & INSURANCE

- 6.1. Save as otherwise set out in this Agreement, all risk in and to the Property shall pass from the Seller to the Purchaser on the Registration Date, or when the Purchaser is given vacant possession of the Property, whichever occurs first, and the Seller shall be obliged to keep the Property fully insured at full replacement cost until such time.
- 6.2. Upon passing of risk, the Purchaser shall receive all benefits from and be responsible for payment of municipal rates and taxes or sectional title levies or Homeowners Association levies relating to the Property. Prepayments made by either Party for any period subsequent to transfer shall be adjusted proportionally.

## 7. WARRANTIES

- 7.1. The Parties acknowledge that no warranties or representations, other than those specifically recorded herein were made in connection with this Agreement and that no such representations or warranties other than those imposed by law may be relied on by any of the Parties.
- 7.2. The Seller warrants as separate and independent warranties, the following as at the Registration Date:
- 7.2.1. There are no latent or patent defects to the Property, which have not been disclosed to the Purchaser and confirmed in the Immovable Property Condition Report ("IPCR") signed by the Parties and annexed hereto; and
- 7.2.2. There are no disputes regarding the Property with any other Party; and
- 7.2.3. The Seller has a good and marketable title to the Property and warrants that on the Registration Date, all Creditors relating to the Property would have been settled.

## 8. TRANSFER AND COSTS

- 8.1. Transfer of the Property will be conducted by the Conveyancers.
- 8.2. Subject to 8.3 and 9 below, the Purchaser shall pay all costs attendant upon registering transfer into the Purchaser's name.
- 8.3. Where there is an existing mortgage bond registered over the Property, the Seller shall be responsible for any costs incurred in cancelling such mortgage bond. In addition, the Seller shall be liable for all costs in respect of the clearance certificates.
- 8.4. The Seller and the Purchaser shall immediately when asked to do so by the Conveyancers, sign all documents required to be signed in connection with the transfer of the Property.

## 9. AGENTS COMMISSION (IF APPLICABLE)

- 9.1. The Seller and Purchaser declare that the Agent is the effective cause of this sale and that no other Agent or Agency:
- 9.1.1. was responsible for the introduction of the Property to the Purchaser; and
- 9.1.2. is entitled to commission on any basis.
- 9.2. Upon acceptance hereof, and if the offer is subject to any suspensive conditions, upon fulfilment thereof, the Seller shall be liable to the Agent for payment of agreed commission plus V.A.T. thereon. As more fully described and set out in the Commission Agreement attached hereto, unless varied according to a further signed and written Agreement concluded between the Agent and Seller.



- 9.3. The commission is payable on registration and the transferring attorney is irrevocably authorised and instructed by the Seller to pay the commission to the Agent on the date of registration unless clause 9.3, 9.4, 9.5 or 9.6 is applicable.
- 9.4. Payment of the commission before registration, but after the fulfilment of all suspensive conditions, can only be made to the Agent with the written consent of both the Seller and Purchaser in a separate document in which each Party's risks are defined.
- 9.5. Should the sale be cancelled due to breach, the defaulting Party shall pay the commission on demand.
- 9.6. Should the sale be terminated in terms of an Agreement, both the Seller and the Purchaser shall be jointly and severally liable to pay the Agents commission. The commission shall then immediately be payable on termination and shall be due on demand, irrespective of whether the suspensive condition(s) have been complied with.
- 9.7. If the Purchaser refuses to give his/her co-operation, alternatively does not take the necessary steps to obtain a mortgage loan, after written demand, by the Seller or transferring attorney to comply with any terms of the Agreement relating to securing a mortgage bond, it will be deemed that the Purchaser has repudiated his/her contractual obligations. This will be construed as a breach of contract by the Purchaser, and he/she may be liable for damages as set out in the breach clause, including but not limited to payment of the commission which will be due and payable on demand.
- 9.8. As the Purchaser is not privy to the commission Agreement, it is agreed that should the Purchaser, for whatever reason, be liable to pay the commission (in full or in part) the commission amount shall be limited to a maximum of 7.5% (plus VAT, if applicable) of the purchase price, alternatively the amount agreed to in Commission Agreement, whichever is lower. The Purchaser agrees that if he/she becomes liable, the Agent's commission amount, as calculated herein is liquidated damages and a reasonable amount relating to the Agent's commission.
- 9.9. The Agency may display a sold sign at the property from the date of fulfilment of the suspensive conditions up to 1 (one) month after registration, subject to the HOA rules (if applicable) and municipal by-laws.

#### 10. COMPLIANCE CERTIFICATES

- 10.1. The following Compliance Certificates are necessary:

| YES | N/A | Compliance Certificate                     |
|-----|-----|--------------------------------------------|
| YES | N/A | Electrical Certificate of Compliance       |
| YES | N/A | Electric Fencing Certificate of Compliance |
| YES | N/A | Gas Certificate of Compliance              |
| YES | N/A | Solar Certificate of Compliance            |

- 10.2. To the extent necessary the Seller shall, at its own cost, provide the Purchaser, on or before the Registration Date, with a certificate of compliance in accordance with the provisions of the Electrical Installation regulations, 2009, issued under the Occupational Health and Safety Act 85 of 1993, by an accredited person, registered with the Electrical Contracting Board of South Africa.





- 10.3. To the extent necessary the Seller shall, at its own cost, provide the Purchaser, on or before the Registration Date with a Certificate of Conformity issued by an authorised person appointed by the Sellers in respect of such installation as required by section 17(3) of Government Notice R734 of July 2009.
- 10.4. In addition, and to the extent necessary the Seller shall, at its own cost, provide the Purchaser, on or before the Registration Date with an Electric Fence Certificate of Compliance as required by the Occupational Health and Safety Act, Act 85 of 1993 and Regulation 12 of the Electrical Machinery Regulations 2011, issued by a registered electric fence installer.
- 10.5. The above certificates shall not pre-date the Registration Date by more than 6 (six) months.
- 10.6. Should it be found that there is a fault or default in the electrical installation, gas installation or electric fence installation, or that such electrical installation, gas installation or electric fence installation may hold any danger for any person, the Seller shall at the Purchaser's written request be obliged to (at the Seller's cost), within 7 (seven) days after receipt of such request, to rectify the fault and thereafter immediately request the issuing of a report which adheres to the requirements specified in this Agreement.

## 11. CREDITORS

- 11.1. Unless otherwise stipulated herein, the Seller will remain solely responsible for the payment of all Creditors who may have any claims in respect of the Property, all of which shall be discharged on or before the Registration Date.
- 11.2. The Seller hereby indemnifies and holds the Purchaser harmless against any claim made by any creditors relating to the Property of which the cause of action arose prior to the Registration Date. If any such claim is made, the claim shall be forwarded to the Seller, who shall pay or defend such claim forthwith.

## 12. VOETSTOOTS AND IMMOVABLE PROPERTY CONDITION REPORT

- 12.1. The Seller confirms and warrants that the Property is not sold in the normal course of business. As a result, the warranty against patent and latent defects as contained in the Consumer Protection Act 68 of 2008 find no application.
- 12.2. The Property is sold voetstoots in the current condition, nature, and extent as inspected and accepted by the Purchaser, allowing for normal wear and tear, from the date of this Agreement to date of Registration of transfer, and is subject to all the conditions and servitudes mentioned or referred to in the sectional plan, the title deed of the Property, the rules of the body corporate, the rules of the Home Owners Association, any restrictions that may be imposed by the local authority and any lease Agreement (if applicable).
- 12.3. The Purchaser shall establish if the Property is subject to management and/or conduct rules of a body corporate in a sectional title scheme and/or Homeowners' Association.
- 12.4. The Purchaser shall familiarise him-/herself with these rules (which is available at the body corporate, Homeowners' Association, or the local Community Scheme Ombud), before making an offer.
- 12.5. The Purchaser shall sign the necessary documentation to become a member of the Homeowners' Association.
- 12.6. The Purchaser automatically becomes a member of the body corporate in the case of a sectional title property.



- 12.7. Should a real right to extend the sectional title scheme in terms of Section 25 of the Sectional Titles Act 95 of 1986, be reserved in favour of the Body Corporate/Developer, the Purchaser hereby confirms that he/she has been made aware of the said right and wishes to continue with this transaction.
- 12.8. The Seller confirms as at the date of acceptance of this offer there are no latent defects in the Property known to the Seller except for items specified in the IPCR attached hereto as an annexure.
- 12.9. If the Seller becomes aware of any defects after the IPCR is signed but before acceptance of this offer, he/she will immediately inform the Agent. An amended IPCR must be completed accordingly and incorporated into the Agreement.
- 12.10. The IPCR does not constitute a warranty as to the absence of defects or an undertaking by the Seller to repair, replace or remove any of the disclosed defects.
- 12.11. The Purchaser confirms that, notwithstanding the Seller's duty to disclose defects as set out IPCR, the Purchaser has conducted a proper and thorough inspection of the Property; or appointed a specialist to do so on their behalf.
- 12.12. There is an irrefutable presumption that, on date of this Agreement, the Purchaser is satisfied with the condition of the property as far as it relates to any defects, which includes regulatory measures.
- 12.13. Once the offer is accepted, the Purchaser cannot cancel the Agreement, claim a reduction in purchase price, institute a claim against the Seller or Agent, withhold registration or require that a retention be kept for any claims arising or related to the condition of the Property.
- 12.14. The Agent, their Agency and/or its nominees are herewith indemnified by the Seller and Purchaser of any latent or patent defects in the property and confirm that it is the sole obligation of the Seller to disclose all latent defects, as known to him.

### 13. FIXTURES AND FITTINGS

- 13.1. The Property is sold with all fixtures of a permanent nature. The Seller warrants that the fixtures are paid in full, that he/she (or the entity represented) is the owner thereof. Examples of fixtures include, but are not limited to items such as: plants not in pots, stove, air conditioning units and remotes, bathroom fittings, fitted aerials/satellite dish, alarm system, pelmets, curtain rails, intercom system, solar panels(including accessories), inverters, battery back-up systems, installed safes, borehole pumps (together with all accessories), swimming pool cleaning equipment (including automatic appliances), swimming pool net/cover, window blinds, electricity metres, security gates, etc.
- 13.2. This includes keys for each exterior door and all security gates, all remotes for motorized gates (if applicable) and remotes for all garage doors (if automated).
- 13.3. The Seller shall ensure that at least one key for each exterior door and each security gate, and at least one remote for each motorised gate and each automated garage door is handed to the Purchaser or Agent on occupation or registration (whichever occurs first).
- 13.4. The Parties record that the following items are also regarded as fixtures and will remain on the property:
- 13.5.

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- 13.6. The Seller will remove the following fittings and items that are specifically excluded from the sale:

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#### 14. BREACH

- 14.1. If at any time a Party ("the Defaulting Party"):
- 14.1.1. is sequestrated, placed under judicial management, in liquidation, under curatorship, or under winding-up, whether voluntarily, compulsorily, final or provisional; or
  - 14.1.2. commits any act which would have been an act of insolvency in terms of Section 8 of the Insolvency Act, 1936 (Act 24 of 1936) (as amended from time to time); or
  - 14.1.3. commits any breach of a material term of this Agreement and fails to remedy such breach for a period of 7 (seven) days after the delivery to the Defaulting Party of a written notice calling on it so to remedy such breach, then the other Party ("the Aggrieved Party") shall be entitled at its sole discretion and without prejudice to any of its rights in law and/or in terms of this Agreement,
  - 14.1.4. to claim specific performance of the terms of this Agreement and claim damages from the Defaulting Party; or
  - 14.1.5. to cancel this Agreement forthwith without further notice and claim damages from the Defaulting Party.
- 14.2. The Parties agree that each and every provision of this Agreement is a material provision and goes to the root of the Agreement.
- 14.3. In the event of either Party having to institute any legal proceedings against the other Party in terms hereof due to a breach of the provisions of this Agreement, then the Defaulting Party shall pay all costs and collection charges incurred by the other Party on a scale as between attorney and own client.

#### 15. DOMICILE AND NOTICES

- 15.1. The Parties choose as their respective *domicilium citandi et executandi* for all purposes arising out of or in connection with this Agreement, whether in respect of court process, notice or other documents or communications of whatsoever nature the physical and email addresses contained in the Annexures "A" and "B".
- 15.2. Either Party hereto shall be entitled to change its *domicilium* from time to time, provided that any new *domicilium* selected by it shall be an address other than a box number, and any such change shall only be effective upon receipt of notice in writing by the other Party of such change.





- 15.3. Any notice which any Party gives in terms of this Agreement:
- 15.3.1. Must be in writing and addressed or sent or delivered to the Parties physical or email addresses stipulated in Annexures "A" and "B".
  - 15.3.2. Shall be deemed to have been given properly and to have come to the notice of the address on:
    - 15.3.2.1. the same day, if delivered by hand;
    - 15.3.2.2. the same day of transmission if sent by email;
    - 15.3.2.3. the seventh day after posting, if sent by registered post.

- 15.4. Notwithstanding anything to the contrary herein contained, a written notice or communication actually received by a Party shall be an adequate written notice or communication to it notwithstanding that it was not sent to or delivered at its chosen *domicilium citandi et executandi*.

## 16. SARS

- 16.1. As a result of the South African Revenue Services (SARS) doing risk analysis on both the Seller and Purchaser on all transfer transactions, both the Seller and the Purchaser warrant to each other and to the Agent, that all taxation issues (both personal and otherwise) including but not limited to, tax returns, tax payments and VAT, are current and up to date.
- 16.2. In the event of the Seller being a registered Company in terms of the Companies Act 71 of 2008 as amended and the property representing the main asset of the Seller, the Seller hereby certifies that this sale is in compliance with the provisions of Section 112 & 115 228 of the said Companies Act.
- 16.3. In the event of the Seller being a non-resident as understood in the Income Tax Act 58/1962 ('the Act') and the purchase price being more than R 2 million, it is recorded that the Purchaser is required in terms of Section 35A of the Act to withhold from the Seller a prescribed portion of the purchase price ('the withheld amount') at time of transfer and to pay such withheld amount to SARS for the account of the Seller as security for Capital Gains Tax which might be payable by the Seller.
- 16.4. It is agreed between the parties that the Purchaser shall simultaneously with payment of the balance of the purchase price pay the withheld amount to the Seller's Conveyancer who shall, as the Purchaser's Agent pay the monies so received to SARS forthwith after registration of transfer.

## 17. POPIA AND FICA

- 17.1. The Purchaser will upon signature hereof, complete and provide the personal information requested in Annexure "A". The Seller will on Signature date hereof, complete and provide the personal information requested in Annexure "B".
- 17.2. The Parties will also on request, immediately provide all information and documentation (in terms of FICA, other legislation or otherwise required) to the Conveyancer and the Agent.
- 17.3. All information provided is protected in terms of POPIA and will only be used for purposes of effecting this transaction and will not be shared with any other party to the agreement or any third party except for the purposes set out below.
- 17.4. The Parties hereby acknowledge and consent to the sharing of their information, insofar it is necessary, between all essential parties involved with the process, including, but not limited to: Bond Originators; Conveyancing Attorneys; Transfer/ Bond Registration/ Bond Cancellation; Financial Institutions; South African Revenue Services; Local Municipality; Homeowners' Association; Body Corporate; Managing Agent.



## 18. COOLING-OFF

- 18.1. No general cooling-off right exists for either Party. The Purchaser, however, has the right to revoke this offer or terminate this Agreement only if:
- 18.1.1. Section 29A of the Alienation of Land Act 68 of 1981 is applicable in that the purchase price is R 250 000.00 (Two hundred and fifty thousand Rand) or less and the Purchaser is a natural person; or
- 18.1.2. It was concluded as a result of direct marketing as set out in section 16(3) of the Consumer Protection Act 68 of 2008 (see clause 17.5 herein).
- 18.2. A written notice of cancellation must be delivered to the Seller or his/her Agent within 5 (five) days from the date the offer was made or from the date the contract was concluded.

## 19. FORCE MAJEURE

- 19.1. Notwithstanding anything to the contrary contained in this Agreement, neither of the Parties hereto shall be liable to the other hereunder for any failure by such Party to fulfil any of the provisions of this Agreement if such failure is caused by reason of any force majeure or matter or cause beyond the control of such Party, including but not limited to adverse weather conditions including drought, storms and flood, strikes or civil disorder, war, labour unrest or disputes, orders of Government or any other Government action, and in such event the relevant Party shall be excused from fulfilment of its obligations in terms hereof during the period it is so prevented for the reasons aforesaid provided that the performance of the obligations of such Party in terms of this Agreement shall be resumed by such Party as soon as may be reasonably practicable after the disability or cause has ceased.
- 19.2. Should either Party be prevented from carrying out its contractual obligations by force majeure lasting continuously for a period of 2 (two) month, the Parties will consult with each other regarding the future implementation of this Agreement. If no mutually acceptable arrangement is arrived at within a period of 5 (five) days thereafter, either Party will be entitled to terminate the Agreement forthwith on written notice to the other Party.

## 20. OTHER CONDITIONS

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## 21. INTERPRETATION

- 21.1. The headings of the clauses in this Agreement are for the purpose of convenience and reference only and shall not be used in the interpretation of nor modify nor amplify the terms of this agreement nor any clause hereof.
- 21.1.1. Unless a contrary intention clearly appears words importing:
- 21.1.2. any one gender include the other genders;
- 21.1.3. the singular include the plural and vice versa; and
- 21.1.4. natural persons include created entities (corporate or unincorporated) and vice versa;
- 21.1.5. references to notices, statements and other communications by or from a Party include notices by or from that Party's agent.



- 21.2. The following terms shall have the meanings assigned to them hereunder, unless the context indicates otherwise, and cognate expressions shall have corresponding meanings, namely:
- 21.2.1. **"the Agent"** means the Real Estate Agent, Property Practitioner and / or Estate Agency and / or its Affiliates and Representatives responsible for introducing the Purchaser to the Property and the Seller/s, thus being the sole cause of this Agreement;
  - 21.2.2. **"the/this Agreement"** means the content of this document, including all Annexures hereto, as amended from time to time;
  - 21.2.3. **"Business Day"** means a day which is not a Saturday, Sunday or an official public holiday in South Africa;
  - 21.2.4. **"FICA"** means the Financial Intelligence Centres Act 38 of 2001;
  - 21.2.5. **"Parties"** means the Seller and the Purchaser collectively, and **"Party"** shall mean either one of them as the context may indicate;
  - 21.2.6. **"Person"** means and includes any individual person, close corporation, company, juristic body, body corporate, partnership, firm, joint venture, trust, unincorporated organisation, association, Government Entity or organization or association of which any of the above is a member, or a participant and, in each case, whether having distinct legal personality or not;
  - 21.2.7. **"POPIA"** means the Protection of Personal Information Act 4 of 2013;
  - 21.2.8. **"Property"** means the property described on page 1 of this Agreement;
  - 21.2.9. **"Registration Date"** means the date of registration of the Property into the name of the Purchaser;
  - 21.2.10. **"Signature Date"** means the date of signature of this Agreement by the Party signing it last;
  - 21.2.11. **"Transferring Attorneys"** and **"Conveyancers"** and **"Seller's Attorneys"** mean those Setout and nominated on page 15.
- 21.3. The termination of this Agreement shall not affect any provisions of this Agreement which expressly or by necessary implication provide that they will operate subsequent to any such termination, notwithstanding that the clauses themselves do not expressly provide for this.
- 21.4. If any provision in a definition is a substantive provision conferring rights, or imposing obligations on any Party, notwithstanding that it is only in the definitions clause, effect shall be given to it as if it were a substantive provision in the body of this Agreement.
- 21.5. No Party shall be bound by any express or implied term, representation, warranty, undertaking or the like not specifically being recorded in this Agreement.
- 21.6. The Purchaser shall not cede, assign, transfer, pledge or make over in any way whatsoever its right, title and interest in and to this Agreement or any part thereof without the prior written consent of the Seller.
- 21.7. All provisions and the various clauses of this Agreement are, notwithstanding the manner in which they have been grouped together or linked grammatically, severable from each other. Any provision or clause of this Agreement which is or becomes unenforceable in any jurisdiction, whether due to voidness, invalidity, illegality, unlawfulness or for any other reason whatever, shall, in such jurisdiction only and only to the extent that it is so unenforceable, be treated as *pro non scripto* and the remaining provisions and clauses of this Agreement shall remain of full force and effect.



- 21.8. The Parties declare that it is their intention that this Agreement would be executed without such unenforceable provision if they were aware of such unenforceability at the time of execution hereof.
- 21.9. This Agreement shall be governed by, and interpreted in accordance with the laws of the Republic of South Africa. The Parties further hereby submit to the jurisdiction of the courts of South Africa.
- 21.10. Any provision of this Agreement imposing a restraint, prohibition or restriction on a Party shall be so construed that such Party is not only bound to comply therewith but is also obliged to procure that the same restraint, prohibition or restriction is observed by all representatives of that Party accessing and/or using the Premises under, by arrangement with, or at the invitation of that Party.
- 21.11. When any number of days is prescribed in this Agreement, same shall be reckoned exclusively of the first and inclusively of the last day unless the last day falls on the Saturday, Sunday or public holiday, in which case the last day shall be the next succeeding day which is not a Saturday, Sunday or public holiday.
- 21.12. Where figures are referred to in numerals and in words, if there is any conflict between the two, the words shall prevail.
- 21.13. Expressions defined in this Agreement shall bear the same meanings in schedules, annexures, addendums and amendments to this Agreement which do not themselves contain their own definitions.
- 21.14. This document shall not be interpreted against the Party responsible for preparing and drafting it, in other words the contra proferentem rule shall not apply to the interpretation of this document.
- 21.15. The use of the word "including" shall not be construed as limiting the meaning of the words preceding it to the one or more examples following it, and the meaning of the general words will not be restricted by the use of more specific words (i.e. the *eiusdem generis* rule shall not be applied in the interpretation of this Agreement).
- 21.16. No latitude, extension of time or any other indulgence which may be given, or permitted, by either Party to the other Party in respect of the performance of any obligation in terms of this Agreement, or the enforcement of any right arising from this Agreement, and no single or partial exercise of any right by any Party shall, under any circumstance whatsoever, be construed to be any implied consent to such Party, or operate as a waiver, or a novation of, or otherwise affect any of that Party's rights in terms of and arising from this Agreement, or stop such party from the enforcement, at any time and without any notice, of strict and punctual compliance with each and every provision, term or condition of this Agreement.
- 21.17. This Agreement constitutes the sole and entire agreement between the Parties and supersedes and replaces in their entirety all previous agreements, representations or warranties between the Parties in this regard.
- 21.18. The provisions, terms and conditions of this Agreement shall neither be amended, varied, consensually cancelled or novated, otherwise than by the unanimous consent of the Parties as reduced to writing and signed by the Parties or their duly authorised representatives.



## 22. ANNEXURES

22.1. The following annexures form an integral part of this Agreement:

| Applicable | Annexure | Description                                |
|------------|----------|--------------------------------------------|
|            | A        | Purchaser/s Full Particulars               |
|            | B        | Seller/s Full Particulars                  |
|            | C        | General Annexure for Additional Conditions |
|            | D        | Professional Fee / Commission Agreement    |

## 23. SIGNATURE

- 23.1. It is recorded that this Agreement is intended to be signed firstly by the Purchaser and thereafter by the Seller.
- 23.2. The Purchaser acknowledge that its signature hereto constitutes an offer by it to purchase the Property on the terms and conditions set out herein, which offer shall be revocable before acceptance thereof by the Seller. This offer is open for acceptance for a period of 10 (ten) days from signature hereof by the Purchaser, failing which it will lapse.
- 23.3. This Agreement shall be duly concluded upon timeous signature by the Seller and a copy of the duly signed Agreement being sent to the Purchaser.
- 23.4. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same Agreement as at the date of signature of the Party last signing one of the counterparts.
- 23.5. The persons signing this Agreement in a representative capacity warrant their authority to do so

|                                                          |            |
|----------------------------------------------------------|------------|
| <b>PURCHASER/S</b>                                       |            |
| SIGNED AND DATED AT _____ on this the ____ day of _____. |            |
| <b>PURCHASER ONE</b>                                     |            |
| Full Names:                                              | Signature: |
| Witness:                                                 |            |
| Full Names:                                              | Signature: |
| Witness:                                                 |            |
| Full Names:                                              | Signature: |





011 568 7568  
 www.bluelily.co.za  
 salesadmin@bluelily.co.za  
 The Workspace, The Club  
 Shopping Centre, Hazelwood,  
 Pretoria

Reg No: 2021/788520/07 EAAB No: F150346 E. Potgieter I R. Van Aardt

SIGNED AND DATED AT \_\_\_\_\_ on this the \_\_\_\_ day of \_\_\_\_\_.

**PURCHASER TWO**

Full Names:

Signature:

Witness:

Full Names:

Signature:

Witness:

Full Names:

Signature:

**SELLER/S**

SIGNED AND DATED AT \_\_\_\_\_ on this the \_\_\_\_ day of \_\_\_\_\_.

**SELLER ONE**

Full Names:

Signature:

Witness:

Full Names:

Signature:

Witness:

Full Names:

Signature:

SIGNED AND DATED AT \_\_\_\_\_ on this the \_\_\_\_ day of \_\_\_\_\_.

**SELLER TWO**

Full Names:

Signature:

Witness:

Full Names:

Signature:

Witness:

Full Names:

Signature:

Seller 1 \_\_\_\_\_ Seller 2 \_\_\_\_\_ Purchaser 1 \_\_\_\_\_ Purchaser 2 \_\_\_\_\_ Agent \_\_\_\_\_



011 568 7568  
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 salesadmin@bluelily.co.za  
 The Workspace, The Club  
 Shopping Centre, Hazelwood,  
 Pretoria

Reg No: 2021/788520/07 EAAB No: F150346 E. Potgieter I R. Van Aardt

| PROPERTY PRACTITIONER/ ESTATE AGENT (IF APPLICABLE)      |            |
|----------------------------------------------------------|------------|
| SIGNED AND DATED AT _____ on this the ____ day of _____. |            |
| <b>PROPERTY PRACTITIONER</b>                             |            |
| Full Names:                                              |            |
| FFC:                                                     | Signature: |
| <b>PRINCIPAL PROPERTY PRACTITIONER</b>                   |            |
| Full Names:                                              |            |
| FFC:                                                     | Signature: |
|                                                          |            |

| PROPERTY PRACTITIONER (IF APPLICABLE) |  |
|---------------------------------------|--|
| Contact Person:                       |  |
| Company Name:                         |  |
| Registration Number:                  |  |
| Physical Address:                     |  |
| E-mail Address:                       |  |
| Tell Number:                          |  |

| CONVEYANCER/S - CONVEYANCER FIRM |  |
|----------------------------------|--|
| Contact Person:                  |  |
| Firm Name:                       |  |
| Registration Number:             |  |
| Physical Address:                |  |
| E-mail Address:                  |  |
| Tell Number:                     |  |

Seller 1 \_\_\_\_\_ Seller 2 \_\_\_\_\_ Purchaser 1 \_\_\_\_\_ Purchaser 2 \_\_\_\_\_ Agent \_\_\_\_\_